

GAHC010051452024



2025:GAU-AS:10419

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/1436/2024

UNION OF INDIA AND 3 ORS.
REPRESENTED BY THE SECRETARY, MINISTRY OF HOME AFFAIRS, NEW
DELHI-110001

2: THE DEPUTY INSPECTOR GENERAL
SSB
NEW DELHI

3: THE DEPUTY INSPECTOR GENERAL
SHQ
SSB
RANGIA
HAHARA
P.O.-RANGIA
DIST- KAMRUP (R)
ASSAM-781354

4: QUARTER MASTER
SHQ
SSB
RANGIA
HAHARA
DIST-KAMRUP (R)
ASSA

VERSUS

STATE OF ASSAM AND 14 ORS.
REPRESENTED BY THE PRINCIPAL SECRETARY, GOVERNMENT OF
ASSAM, REVENUE AND DISASTER MANAGEMENT DEPARTMENT, ASSAM,
GUWAHATI-781006

2:THE DEPUTY SECRETARY TO THE GOVERNMENT OF ASSAM
REVENUE AND DISASTER MANAGEMENT DEPARTMENT

JANATA BHAWAN
DISPUR
GUWAHATI-781006

3:THE DEPUTY COMMISSIONER
KAMRUP (R)
AMINGAON
ASSAM

4:THE ADDITIONAL DEPUTY COMMISSIONER
KAMRUP
AMINGAON
OFFICE OF THE DEPUTY COMMISSIONER
(LAND ACQUISITION BRANCH)
KAMRUP
AMINGAON

5:THE CIRCLE OFFICER
KAMALPUR REVENUE CIRCLE
KAMALPUR
DIST-KAMRUP (RURAL)
ASSAM

6:THE CIRCLE OFFICER
RANGIA REVENUE CIRCLE
RANGIA
DIST-KAMRUP (RURAL)
ASSAM

7:SMT. NIZARA NATH
W/O OF JAYANTA BARUAH
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

8:DANDESWAR BARUAH
S/O LATE KABINDA NATH
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

9:MD. MAJAHAR ISLAM

S/O LATE SIDDIQUE ALI
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

10:KHARGESWAR KALITA
S/O LATE NABIN KALITA
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

11:ANIL CH. NATH
S/O LATE SHADHIRAM NATH
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

12:DIJEN CHANDRA NATH
S/O LATE SHADIRAM NATH
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

13:PRAKASH KALITA
S/O LATE MAHENDRA KALITA
R/O VILL-HAHARA
MOUZA-PUBPAR
KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

14:SMT. GODHULI NATH
W/O SUKURAM NATH
R/O VILL-HAHARA
MOUZA-PUBPAR

KAMALPUR REVENUE CIRCLE
P.O.-PUBPAR
DIST-KAMRUP (RURAL)
ASSAM

15:PRADEEP NATH
S/O LATE BIPIN CHANDRA NATH
R/O VILL- HAHARA
P.O.-MORANJANA
MOUZA- PUB-PAR
KAMALPUR REVENUE CIRCLE
DIST- KAMRUP (RURAL)
ASSA

Advocate for the Petitioner : MR H GUPTA,

Advocate for the Respondent : SC, REVENUE AND DISASTER MANAGEMENT DEPT, MD A S
ALI (R-11,12,14),MR. A MANNAF (R-11,12,14),MR P KATAKI (R-9,10,13),MR. B K DEKA (r-
7,8,15),MR. A DEKA (r-7,8,15),GA, ASSAM

BEFORE

THE HON'BLE MR JUSTICE ARUN DEV CHOUDHURY

For the Petitioners : Mr. H Gupta, CGC.

For the respondents : Mr. N Goswami, GA Assam
Mr. B.K. Das, Advocate
Mr. A Deka, Advocate

Date of hearing : 24.07.2025

Date of Judgment : 08.08.2025

JUDGMENT & ORDER (CAV)

1. The writ petition is filed by the Union of India in the Ministry of Home

Affairs, New Delhi by assailing an order 08.06.2023 passed by the Deputy Commissioner, Kamrup (Collector) whereby an amount of Rs. 9,00,087/- and Rs. 2,23,74,724/- respectively have been determined to be requisition/ acquisition compensation.

2. Before dealing with the argument of the learned counsel for the parties, let this court first record the brief facts, which are necessary for determination.
3. The respondents herein filed two separate writ petitions being WP(C) 1127/2022 and WP(C) 5003/2020. The prayer made in WP(C) 1127/2022 was for issuance of writ of mandamus to pay acquisition compensation in respect of a land measuring 4 Kathas 8 Lechas covered by Dag No. 80, Patta No. 131 of Revenue Village- Hahara, Mouza- Pub-Par under Kamalpur Revenue Circle in the district of Kamrup and alternatively to release the said land and pay requisition compensation with effect from date of issuance of notice under Section 4(1) of the Assam Land (Requisition & Acquisition) Act, 1964. In WP(C) 5003/2020, similar prayer was made, the difference in fact is the area of the land and its dag and patta numbers.
4. In the aforesaid proceeding, the Union of India by way of filing an affidavit brought a communication dated 19.11.2020 intimating their decisions that though initial requirement of the land for two approach roads was for 10 Acres, but after reviewing the proposal, now they are in requirement of only 3 Acres of additional land for composite SSB Campus of SHQ, Rangia Battalion.
5. The aforesaid two writ petitions were heard together and by way of

common judgment and order dated 25.07.2022, the writ petitions were disposed of with the following directions:

"In view of the above and as agreed to by the learned counsel for both sides, I dispose of these writ petitions by directing the respondent No.3 i.e. the Deputy Commissioner, Kamrup(R) to consider the grievance of the petitioners and thereafter, **take appropriate steps for handing back possession of the land to the writ petitioners and also for paying requisition compensation to the petitioners for the period during which the land remained under the occupation of the respondent authorities.** In doing so, it will not only be open to the respondent No.3 **to make fresh assessment of the amount of compensation that is to be paid to the petitioners** but he would also be **entitled to take a decision as to whether the land in question falls in the category of agricultural land or the same is 'patit' land.** The exercise, as directed above, be completed as expeditiously as possible but not later than six months from the date of receipt of a certified copy of this order. With the above observation, these writ petitions stand closed."

(Emphasis supplied)

6. From the aforesaid order what is seen is that the Union of India acceded to payment of requisition compensation payable to the petitioners and to hand over the land back to the land owners by following due process of law and such submission on behalf of the Union of India was also acceded by the learned counsel for the petitioner and accordingly the writ petitions were disposed of. Thereafter, the impugned order dated 08.06.2023 was passed by the Deputy Commissioner in compliance of such order.
7. In the aforesaid backdrop, Mr. Gupta, learned counsel for the petitioners argues that the land in question, which were requisitioned, were never surrendered by land owner and symbolic possession of the said land was given to them. However, by virtue of subsequent notice under Section 6(1) of the Act, 1964 though the acquisition of the land in question was initiated, however, such acquisition had lapsed for the reason that no award was passed within the stipulated period of two years. Therefore, the Union of India are not entitled to pay any requisition

compensation.

8. The second ground urged by Mr. Gupta is that though there was a report from the Lotmandal, which says that the land in question are fellow land and not agricultural land, therefore, the Deputy Commissioner has committed a serious error in determining the land acquisition compensation under its order dated 08.06.2023 inasmuch as there was a specific direction in judgment and order dated 25.07.2022 to decide on this aspect of the matter.
9. It is the further contention of Mr. Gupta that such assessment of land acquisition compensation was made without informing the Union of India. It is his further contention that the assessment of the compensation is in contravention of Section 11(4) of the Assam Land (Requisition & Acquisition) Act, 1964.
10. Per contra, the learned counsel for the respondents land owners submits that when a notice under Section 6(1) of the Act, 1964 was issued and acquisition process initiated, the respondents land owners were entitled for land acquisition compensation and not the requisition compensation inasmuch as in terms of Section 24 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 such compensation is to be determined in terms of the Act, 2013 though the proceeding initiated under Section 6(1) of the Act, 1964 had lapsed and therefore the Collector has rightly determined the compensation in term of the Act, 2013. It is the further contention that when land vested upon State, when notice under Section 6(1) of the Act, 1964 was issued and there is no scope of determination of requisition compensation under Section 11 of the Act, 1964, rather it is to be treated

as an acquisition and the determination is to be made by the Collector as provided under Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

11. The learned counsel for the respondents however contends that though the aforesaid is the procedure required to be followed, however as both the parties have conceded to acceptance of requisition compensation, instead of land acquisition compensation as proposed by the Union of India in the proceeding of WP(C) 1127/2022 and WP(C) 5003/2020, the Union of India now cannot recile from their position and if they recile from their position. Even otherwise, the Union of India is to pay acquisition compensation, and the land cannot be returned to land landowners.
12. I have given anxious consideration to the argument advanced by the learned counsel for the parties.
13. Section 3(1) of the Act, 1964 empowers the State Government or any person authorised in this behalf, in certain circumstances enumerated in the aforesaid Section, to requisition any land and to make such further orders, which is necessary and expedient in connection with the requisition; however, such order should be in writing. In the case in hand, there is no dispute that a notice under Section 3(1) was duly issued.
14. In the backdrop of argument of Mr. Gupta that no possession was handed over to the authorities, which, according to Mr. Gupta, is mandatory under Section 4(1), let this court scrutinize Section 4 of the Act. Section 4 of the Act, 1964, deals with the power to take possession of requisitioned land. Subsection 1 of Section 4 mandates that the Government may by order in writing direct the owner/ tenant or any

person, who may in possession of the land whether at the time of requisition or anytime thereafter and before the land is released from requisition under Section 8, to surrender or deliver possession thereof to the Collector or any other person authorized by him.

15. Section 4 (2) provides that, if any person refuses or fails to comply with any order made under Section 4 (1), the State Government or the person authorised in this behalf may take possession of the land and, for that purpose, can use such force as may be necessary.
16. In the case in hand, a notice under Section 4(1) was also admittedly issued directing the land owner of the land scheduled in the notice, to surrender or deliver possession of the requisitioned land to the Circle Officer, Kamalpur Revenue Circle, being person authorised in this behalf. There is nothing on record that the land owner, pursuant to notice under Section 3(1) & 4(1) of the Act, 1964, refused to surrender the land or that any action was taken under Section 4(2). Therefore, the contention of the Union in not getting the possession cannot be adjudicated in this proceeding, more particularly, when they have conceded to pay requisition compensation, in the admitted background that they no longer require the land.
17. In the case in hand, during the earlier proceeding it is never raised that such land was not handed over by the landlord after issuance of notice under Section 4(1) and therefore, some actions under Section 4(2) was taken, rather in the earlier proceeding, the Union of India through its counsel made a submission that they are agreeable to make payment of such requisition compensation and based on such submission, the earlier writ proceeding was disposed of to pay requisition compensation with a

specific direction to handover possession of the land.

18. Therefore, the contention of Mr. Gupta that in the proceeding of WP(C) 1127/2022 and WP(C) 5003/2020, the Co-Ordinate Bench during the adjudication in its order dated 01.06.2022 recorded that no action under Section 4(1) was is having no relevance inasmuch as the order dated 01.06.2022 had merged with the final judgment & order dated 25.07.2022.
19. Under the scheme of the Act, 1964 and as recorded hereinabove, the State is empowered to requisition land in certain circumstances. At the same time, under Section 6 of the Act, 1964, the State is empowered to initiate the acquisition of such land, already requisitioned. In terms of Section 6 (2), when a notice under Section 6(1) is issued, then such land shall vest absolutely in the State Government free from all encumbrances and the period of requisition of such land shall end. Admittedly, in the case in hand, notice under Section 6(1) was issued and thus the land vested with the State of Assam from such date, and therefore, under the Scheme of the Act, the requisition cannot continue. However, a specific direction, in the earlier proceeding under judgment dated 25.07.2022, was passed to hand over the land and to pay requisition compensation, and such order has already attained finality.
20. It is apposite to record that under Section 8(1) of the Act, 1964, there is a provision for the release of land from requisition. Section 8(1) permits the State to release such land from requisition, subject to the condition that such land is not already acquired and acquisition in this context shall mean a Notification under Section 6(1). Therefore, there is a legal bar to exercise power under Section 8 (1) of the Act, 1964, to release the land

from requisition, when a notice is issued under Section 6(1) has already been issued.

21. Therefore, the contention of the petitioner Union of India that they are liable to pay requisition compensation till the date of acquisition i.e. issuance of notice under Section 6(1) and not till the date of release of such requisition under Section 8 (1), cannot be accepted and the Union of India cannot be allowed to play hot and cold at the same time, more particularly, in view of judgment dated 25.07.2022 passed in the earlier writ proceeding. The Union of India cannot be permitted to say that it is a requisition for payment of compensation, and since the land was acquired, they will pay such requisition compensation till issuance of notice under Section 6(1).
22. As recorded hereinabove, when under the scheme of the Act, the requisitioned land is acquired, the same shall vest upon the State and exercise of power under Section 8(1) is permitted, when there is no acquisition under Section 6(1). However, by consent of the parties, it was decided to pay requisition compensation. Such consent still holds the field. If that be so, the land is to be released from requisition under Section 8 of the Act, 1964, which was directed in the earlier proceeding and such requisition compensation is to be made for the period from the date of the notice under Section 4(1) till its handing over.
23. Now coming to the determination of compensation by the Collector, more particularly, in view of the determination made hereinabove that the land is to be treated as requisitioned and also in view of direction of Co-ordinate Bench in judgment and order dated 25.07.2022 for payment of requisition compensation, the Deputy Commissioner shall be bound to

determine such compensation in term of Section 11(4) of the Act, 1964 and as per judgment dated 25.07.2022.

24. Under the Scheme of Section 11, there is a prescription of agreed requisition compensation and therefore, by necessary implication, the Union of India in Ministry of Home Affairs shall also be given an opportunity, while determining such compensation inasmuch as in the event there is no agreed price determination, the Collector is to determine the compensation in term of the Section 11(4) of the Act' 1964.
25. Therefore, in the given fact of the present case, the Deputy Commissioner could not have determined the compensation as land acquisition compensation in terms of Section 13 of the Act, 1964. The respondents, land owners, have also no objection to the determination of such requisition compensation instead of land acquisition, inasmuch as in the earlier proceeding, it was their case that they are claiming only requisition compensation.
26. Accordingly, for the reasons recorded herein above and determination made, the following directions are issued:
 - I. Impugned order dated 08.06.2023 passed by the Deputy Commissioner, Kamrup (Collector) stands set aside and quashed.
 - II. The matter is remanded back to the Collector to decide afresh the requisition compensation in terms of Section 11 of the Act, 1964 and also in terms of the determination made hereinabove and made in judgment dated 25.07.2022.
 - III. After the compensation is determined, pay the same with the applicable interest, if any permitted under the Act, 1964.

- IV. The entire exercise shall be carried out within 3 months from receipt of a certified copy of this order to be furnished before the Collector/ Deputy Commissioner by either of the parties.
- V. Writ petitions stand disposed of. Parties to bear their own costs.

JUDGE

Comparing Assistant